

Contentious Chamber

Decision 16/2025 of January 24, 2025

File number: DOS-2023-03278

Subject: substantive treatment of complaints against DPG Media regarding cookies on the websites 'hln.be', 'demorgen.be', 'vtm.be', and '7sur7.be'

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, president sitting alone;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter referred to as "GDPR";

Considering the law of December 3, 2017, establishing the Data Protection Authority, hereinafter referred to as "LCA";

Considering the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Has made the following decision regarding:

The complainants:

X1, hereinafter referred to as the "first complainant," and X2, hereinafter referred to as the "second complainant," both represented by Noyb - European Center for Digital Rights, hereinafter referred to as "the complainants";

The defendant:

DPG Media, represented by Master MAARTEN STASSEN, hereinafter referred to as "the defendant."

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I. Facts and Procedure

1.

The subject of the file concerns four complaints submitted to the Data Protection Authority on July 19, 2023, regarding the websites (1) <https://www.hln.be> (complaint of the first complainant), (2) <https://www.demorgen.be> (complaint of the first complainant), (3) <https://www.vtm.be> (complaint of the first complainant), and (4) <https://www.7sur7.be> (complaint of the second complainant). On August 24, 2023, the four complaints were jointly declared admissible by the Frontline Service and forwarded to the Contentious Chamber.¹

2. On September 21, 2023, the parties to the file were (in summary) informed that the Contentious Chamber intended to proceed with a proposal for a settlement.

3. On October 20, 2023, a proposal for a settlement was sent to the parties, the Contentious Chamber having exercised its power under Article 95, § 1, 2° of the law of December 3, 2017, establishing the Data Protection Authority (hereinafter: "LCA").

4. On October 30, 2023, the representative of the complainants submitted a response to the proposal for a settlement, making several requests to the Contentious Chamber to modify or adapt the terms of the settlement. The Contentious Chamber did not modify the proposal for a settlement following these requests.²

5. On November 17, 23, and 28, 2023, several exchanges took place within the framework of the settlement procedure between the defendant, DPG Media, and the Contentious Chamber – the complainant party was always copied.

6. On December 1, 2023, the Contentious Chamber made a decision to withdraw the decision on the proposal for a settlement.

7. The defendant filed an appeal with the Market Court against the decision to withdraw the proposal for a settlement of December 1, 2023, in accordance with Article 108, § 1 of the LCA; this appeal was treated under role number 2023/AR/1613. On September 6, 2024, the Market Court declared in a judgment that this appeal was admissible but unfounded.

8. On February 5, 2024, the Contentious Chamber invited the parties to submit their conclusions in

accordance with Article 95, § 1, 1° in conjunction with Article 98 of the law of December 3, 2017, establishing the Data Protection Authority ("LCA"). DPG Media submitted a

1 Admissible complaints are forwarded by the frontline service to the contentious chamber." (Art. 62, § 1 of the law of December 3, 2017, establishing the Data Protection Authority).

2 Following the settlement procedure in this file, the Contentious Chamber published a settlement policy on its website, of which a second updated version was published in December 2024, available via the following link: <https://www.autoriteprotectiondonnees.be/publications/politique-de-transaction-de-la-chambre-contentieuse.pdf>.

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Appeal to the Market Court against this decision in a case bearing the role number 2024/AR/439.

9. On October 9, 2024, the Market Court ruled on the appeal against the letter of February 5, 2024, with DPG Media's appeal being declared admissible and well-founded. The Contentious Chamber transmitted this ruling to the parties involved in the administrative procedure on October 22, 2024, the day following its receipt.

10. The Contentious Chamber then provided both parties – in an ad hoc procedure that the legislator does not explicitly foresee – the opportunity to first express their positions, following the annulment ruling of the Market Court, regarding the mandate and the interest (to take legal action) of the complainants and their representative, before making a decision in accordance with Article 95, § 1 of the LCA.

11. This decision arises and takes into account (i) the position that the complainants conveyed through their representative Noyb on November 15, 2024, and (ii) the position that the defendant submitted to the Contentious Chamber on December 20, 2024 – limiting itself to the interest (to take legal action) and the mandate in the context of the introduction of the disputed complaints.

12. Under Article 95, § 2, 3° of the LCA as well as Article 47 of the internal regulations of the APD, a copy of the file may be requested by the parties. If either party wishes to make use of the possibility to consult and copy the file, they are required to contact the secretariat of the Contentious Chamber, preferably via the address [...].

II. Motivation

II.1. Procedural Context: Ruling of the Market Court of October 9, 2024

13. In its ruling, the Market Court finds that the appeal against the letter of February 5, 2024, is admissible because the letter (i) mentions a list of allegedly retained violations and (ii) uses the terms "based on the documents in the file, including the complaint form," and does not imply that the file is more substantial than the complaint form submitted by Noyb. For these reasons, the Market Court asserts that the appeal "in this very specific context" is admissible.

14. In its ruling of October 9, 2024, the Market Court declared the appeal against the letter of February 5, 2024, well-founded and annulled the decision contained in the letter from the Contentious Chamber – regarding the preparation of the file in accordance with Article 95, § 1, 1° of the LCA and the invitation to submit conclusions in accordance with Articles 98-99 of the LCA – due to (i) a lack of formal and material motivation and (ii) the absence of mention of the remedies that can be used against it.

15. Regarding the lack of motivation, the Market Court refers to a previous decision of the Contentious Chamber in a file that the complainant mentioned during the current procedure. In this file, the Inspection Service had intervened and – at the end of the substantive procedure as referred to in Articles 98 and following of the LCA – the Contentious Chamber had dismissed the complaint due, in very summary terms, to the fictitious nature of the mandate granted. Since the complainant had mentioned the file in question during the current procedure, the Market Court states in its ruling:

"In the 'similar' file DOS-2021-06483 that NOYB explicitly cites itself, the Contentious Chamber decided on January 24, 2024 (therefore before taking the decision that is now contested) (document 21, APD, Decision 22/2024) to dismiss the complaint because 'Noyb does not demonstrate a sufficient interest to act' and it notes 'a lack of interest to act on the part of the actual complainant.'

[...]

In this case, DPG Media plausibly argues that in the contested decision, the Contentious Chamber

should have motivated the reason why it ostentatiously deferred its analysis regarding the alleged lack of interest to take legal action on the part of Noyb until the end of the full preparation and substantive processing.

[...]

In this instance, the Market Court believes that no justification is provided for the different treatment of supposedly comparable situations and that the Market Court is therefore unable to verify whether the Contentious Chamber's judgment on this point is not manifestly unjustified." (emphasis added by the Contentious Chamber) (N.B.: freely translated by the Translation Service of the Data Protection Authority, in the absence of an official translation)

5 Decision 22/2024 of the Contentious Chamber of January 24, 2024, publicly accessible via the following link: www.autoriteprotectiondonnees.be/publications/decision-quant-au-fond-n-22-2024.pdf, hereinafter also "Decision VOO."

6 The complainant had qualified this file as 'comparable' to the present file during the administrative procedure.

7 Market Court, October 9, 2024, 2024/AR/439, p. 26.

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16. It follows from this ruling that the Market Court qualifies decision 22/2024 of January 24, 2024, as a relevant document that the Contentious Chamber must incorporate into the present proceedings, although under the previous case law of the Market Court, administrative decisions (just like judicial decisions) do not have precedential value.⁸ Each case must indeed be evaluated in concreto according to the circumstances.⁹ The VOO decision on the merits from January 2024, initially unrelated to the present proceedings, was not part of the documents in the current file at the time of the annulment of the decision on the merits and the invitation to submit conclusions, and at no point before the letter of February 2024 did the defendant assert the relevance, in the present proceedings, of the VOO file or the decision contained therein. The defendant already had full access to the file before and during the settlement procedure preceding the administrative procedure and had the right to access, among other things, the exchanges between the Frontline Service and Noyb as early as September 2023 regarding the interest (to take legal action) of the complainants.

17. The Contentious Chamber therefore understands, from the ruling of the Market Court, a particular obligation of motivation in the present file, where the Contentious Chamber must explain the difference in treatment between this file and the one that led to decision 22/2024 of January 24, 2024 ("VOO file"), which it should have done in any case due to the mention by the complainant party that the VOO file would be similar.

18. This decision of the Contentious Chamber does not prefigure the final position of the Data Protection Authority regarding an appeal against the ruling of the Market Court of October 9, 2024, in the case numbered 2024/AR/439, and it does not prejudice any right or remedy, nor does it contain any detrimental acknowledgment.

II.2. Particular Motivation of the State of Affairs

II.2.1. Discretionary Power under Article 95, § 1 of the LCA and the Procedural Interest of the VOO Decision

19. First, in the phase preceding the treatment on the merits, the question of the mandate and the determination of the interest (to take legal action) of the complainant party in the present file is not treated differently at the procedural level compared to the VOO file. In the VOO file, the Contentious Chamber did not ask the Inspection Service to examine the mandate and the interest (to take legal action); the questions

8 Market Court, December 1, 2021, 2021/AR/1044, p. 17.

9 Market Court, January 10, 2023, 2023/AR/817, p. 39-40.

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of the Contentious Chamber was solely based on the findings in this investigation.¹⁰ However, it is more important to emphasize that the decision to refer such an investigation to the Inspection Service is at the discretion of the Contentious Chamber.¹¹ Within the European Economic Area, over 100,000 complaints are filed each year and must all be processed by the supervisory authorities "with all due

diligence"¹²; in this regard, not all Belgian complaints can be submitted for investigation to the Inspection Service.¹³

20. Secondly, regarding the relevance of the decision in the VOO case, the complainants assert the following in their position before the Contentious Chamber concerning the "comparable" nature of the VOO case:

"Furthermore, Noyb's email in this regard was taken out of context by DPG Media and by the Market Court concerning the wording "comparable case." Noyb simply meant that these are complaint procedures concerning the same subject, namely illegal cookie banners, and that in such cases, it is common to demonstrate through HAR files that cookies are indeed placed, resulting in the processing of personal data." (emphasis added by the Contentious Chamber)¹⁴

The complainants would therefore expressly contest having characterized the VOO case as "comparable" in terms of the mandate and interest (to take legal action).

The Contentious Chamber notes in this regard that this contestation by the complainants – all the more so since the complainants did not intervene in the proceedings before the Market Court, which led to the judgment of October 9, 2024 – is significant for the subsequent developments in this decision.

21. Thirdly, it should be noted that the parties did not limit their positions to the decision in the VOO case, but also mentioned other cases in their position. The parties specifically also mention the decision 112/2024 of September 6, 2024, of the Contentious Chamber (the "Roularta decision").¹⁵ Given these mentions, and considering the particular obligation to provide reasoning that the Market Court has

10 The same applies to the Roularta decision; see Decision 112/2024 of September 6, 2024, § 30.

11 Article 94, § 1, 1, 1° of the LCA.

12 CJEU, Judgment of September 26, 2024, TR v. Land Hessen, C-768-21, § 32; CJEU, Judgment of January 9, 2025, Österreichische Datenschutzbehörde v. F.R., C-416/23, § 36.

13 In Belgium, hundreds of complaints have been filed each year since 2018, see Data Protection Authority, annual reports 2016-2023, available via the following link:

<https://www.autoriteprotectiondonnees.be/citoyen/l-autorite/rapport-annuel>; for European figures, see the European Commission communication of July 25, 2024, Second report on the application of the General Data Protection Regulation, COM(2024) 357 final, section 2.3, also see section 2.5.2 regarding "Difficulties in processing a large number of complaints."

14 Position of the complainants, November 15, 2024, point 63.

15 The respective complainants or their representative did not file an appeal with the Market Court against the decisions to dismiss the VOO and Roularta cases.

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introduced following the mention of other cases in these specific circumstances, the Contentious Chamber will also address these aspects – albeit in a limited manner.

22. The Contentious Chamber further notes in this context, and purely for the sake of completeness, that the defendant only contested the mandate and the interest (to take legal action) (in February 2024) following the transparent and immediate publication of the VOO decision on the website of the Data Protection Authority (in January 2024), just as the complainants felt compelled to file complaints after becoming aware of the settlement decisions of the Contentious Chamber in the cases initiated by the Executive Committee of the Data Protection Authority. The transparency of the Contentious Chamber and, by extension, of the Data Protection Authority – the publication of decisions is not mandatory as long as the Contentious Chamber decides on a case-by-case basis – has

precisely led to all the legal and factual debates that are taking place today.¹⁶ The Contentious Chamber welcomes this debate but simultaneously clarifies that the debate with substantive arguments must take place in the context in which the legislator intended, namely during the substantive proceedings as defined in Articles 98 et seq. of the LCA.

II.2.2. The in concreto assessment of the presumed similarity with the VOO decision (and Roularta)

23. In their respective positions of November 15, 2024, and December 20, 2024, the

parties address the similarities and differences between the present case and – in particular – the elements in the VOO decision and, as mentioned above, the Roularta decision.

24. There is no doubt that the complaints did not arise in the same manner in the three cases.

25. Regarding the VOO decision, reference can be made to the following facts and timeline.
i.

On May 30, 2021, Noyb sends a pre-litigation letter to VOO, addressing a "draft complaint" in order to encourage it to comply based on the alleged violations stated by Noyb;¹⁷

16 In any case, the transparency of the Data Protection Authority and its Contentious Chamber undeniably leads to a higher quality of arguments and legal debate, and stands in contrast to the transparency within many other

administrative and judicial authorities; for this latter aspect, various causes are responsible, see in particular

VANDERSTICHELE, G., "Contribution to a vision for the judiciary in a digital society (1)", Substack, January 13, 2025,

available via the following link:

https://gvanderstichele.substack.com/p/bijdrage-aan-een-visie-voor-de-rechtspraak?r=4rtka&utm;_campaign=post&utm;_medium=web&triedRedirect;=true.

17 Decision 22/2024 of January 24, 2024, point 4.

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ii.

On May 31, 2021, Noyb publishes a press release – also mentioned¹⁸ in the VOO decision – in which it specifies that as an association, it has sent 560 similar draft complaints to companies in 33 countries, and that it intends to increase this number to "10,000 additional complaints." The press release explicitly indicates Noyb's method, both textually and visually.

a) In the text, notably:

"To address this extremely wide-spread issue, Noyb has developed a system that automatically detects different types of violations. The Noyb legal team reviews each website, while the system automatically generates a GDPR complaint."¹⁹ (underlining and bolding by the Contentious Chamber)

It follows that in the context of this specific project, (i) it is Noyb, as an association, that seeks out data controllers committing violations and that it is not the initiative of individual data subjects with current and existing grievances under the GDPR, (ii) that Noyb uses automated means for this purpose, which further demonstrates the distance between the ultimate complainant and the origin of the complaint, and (iii) that Noyb does not explicitly refer to data subjects or complainants, but rather to the "legal team" for the investigation of the targeted data controllers. In light of these elements, it is more than evident that the ultimate complainants did not act as data subjects in a private capacity, but rather as collaborators (voluntarily or not, and regardless of their concrete status) of the Noyb association.

18 Decision 22/2024 of January 24, 2024, point 24 and its footnote 5.

19 Free translation of the following passage from the press release in English: "To address this extremely wide-spread issue,

noyb has developed a system that automatically discovers different types of violations. The noyb legal team reviews each

website, while the system automatically generates a GDPR complaint." The press release is mentioned in the

VOO decision; Decision 22/2024 of January 24, 2024, point 24 and its footnote 5.

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b) Visually, the textual explanation is only confirmed in the same press release:

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From left to right, the timeline disseminated by Noyb itself reads as follows: "Global Analysis" - "Target List" - "In-Depth Review" - "Draft Complaint" - "Settlement Option" - "Formal Complaint";

iii.

It was only on August 2, 2021, after VOO's abstention from adapting its practices according to the proposals made by Noyb, that the complainant entrusted it with a mandate;²¹

iv.

On August 10, 2021, Noyb finally filed a complaint – on behalf of the complainant in this case – with the Data Protection Authority.²²

20 Decision 22/2024 of January 24, 2024, point 24 and its footnote 5; the press release from Noyb titled "Noyb aims to end 'cookie banner terror' and issues more than 500 GDPR complaints" is available via the following link:

<https://noyb.eu/en/noyb-aims-end-cookie-banner-terror-and-issues-more-500-gdpr-complaints>.

21 Decision 22/2024 of January 24, 2024, point 6.

22 Decision 22/2024 of January 24, 2024, point 1.

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for any damages that may result from GDPR violations that an employee may have observed under instruction, despite the voluntary nature of the complaint filing);

3) a device – which exceeds the introduction of the complaint in a manner that constitutes an abuse of rights – to be able to de facto use Article 80.2 of the GDPR which is not activated in Belgium in order to address global and ancillary issues based on the strategic objectives of the Noyb association.

Furthermore, regarding the Roularta case, full reference is made to the reasons for dismissal used in this decision.²⁷

29. In conclusion: it emerges from the statements of both Noyb representatives and the complainants in the VOO and Roularta cases that certain prior instructions may have been established by Noyb for the (future) concerned parties or complainants. The complainant explicitly stated in the VOO case that the files had been 'assigned' to him (Decision 22/2024, § 46). Such statements do not appear in the present administrative file. In the aforementioned two cases, there were also publicly available elements that further supported this objective difference. In the VOO case, for example, Noyb sent "pre-contentious letters" among others to VOO based on visits following the automated identification of a "target list," that is to say a "list of targeted individuals" (Decision 24/2024, § 24). In the Roularta case, for example, there was a project initiated by Noyb that already established the identity of the companies in question as part of a media-covered project with 101 complaints (Decision 112/2024, § 40).

II.2.3. Concrete responses to the (sub-)arguments of the parties regarding the interest (to take legal action) and the mandate

30. It has already been demonstrated above that, by its nature and the constellation of facts, the present file differs from both the VOO file and the Roularta file. The Contentious Chamber will further examine the arguments, particularly from the defendant, to arrive at the conclusion that there is a legitimate, direct, and personal interest on the part of the complainants, and that there is no question of an abuse of rights.

31. The Contentious Chamber particularly examines the three arguments in the defendant's position prior to this decision, titled as follows:

First Argument: the false statements and objectively verifiable inaccuracies contained in the complaints are such that it cannot be reliably proven that the defendant has processed the personal data of the complainants, so that the complainants

27 Decision 112/2024 of September 6, 2024, section II.3.

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do not have the status of "data subjects" within the meaning of Article 4.1 of the GDPR to file a

complaint against the defendant under Article 77 or Article 80.1 of the GDPR, and therefore do not have a legitimate interest to act in the present proceedings.

Second Argument: Given that Noyb had determined all aspects of the complaints independently of a request from the data subject before generating the circumstances giving rise to the complaints to subsequently submit them to the DPA, that Noyb was the true complainant in the context of the complaints, whereas in Belgium, Noyb does not have the right to file complaints independently of a request from a data subject and has therefore called upon complainants to file the complaints under Article 80.1 of the GDPR in conjunction with Article 77 of the GDPR, it is clear that Noyb sought to artificially create a legitimate interest to act in the present proceedings in order to achieve its predetermined objectives, which constitutes an abuse of rights and, consequently, the complaints should be dismissed.

First Sub-Argument: the complaints are part of Noyb's "Cookie Banners" project.

Second Sub-Argument: the complaints were part of a sub-project and were generated by Noyb based on specific selection criteria deliberately established by Noyb.

Third Sub-Argument: the complainants worked as legal interns on behalf of Noyb during the preparation of the complaints.

Fourth Sub-Argument: Noyb does not have the right, in Belgium, to file a complaint with the DPA independently of a request from a data subject and is therefore using the procedure under Article 80.1 of the GDPR to circumvent the lack of rights under Article 80.2 of the GDPR, which constitutes an abuse of rights.

Third Argument: comparison with Decision 22/2024 of January 24, 2024, of the Litigation Chamber. (Translator's Note: free translation made by the Translation Service of the Data Protection Authority, in the absence of an official translation)

32. Firstly, the fact that the complainants made these findings on Noyb's professional computers does not in itself constitute an objection and does not detract from the fact that personal data of the complainants may also be processed in this context. The fact that Noyb was the complainants' internship supervisor at the time of the assignment and that Noyb (explicitly or tacitly) provided the complainants with a forum allowing them to file complaints under the GDPR based on their own grievances is also not – as the Chamber pointed out.

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Litigation in the Roularta decision²⁸ – a problem in itself for the introduction of the complaint, as it does not properly demonstrate the artificial creation of grievances or a procedural interest, nor a fictitious mandate, nor an abuse of rights. The complainants rightly point out in their position²⁹ that Article 77 of the GDPR provides for an accessible right to lodge a complaint and that the complaints sufficiently demonstrate that the complainants – who present themselves unreservedly as data subjects who initiated the complaints themselves³⁰ – have an interest in filing the complaints.

It should be emphasized here that the forum offered by Noyb for filing complaints, particularly to individuals working (as interns or otherwise) for the association, does not constitute a problem in itself – certainly not to the extent that it constitutes a sufficient reason to dismiss the complaint, precisely because it does not represent an explicit abuse of rights or artificially create an interest (to take legal action).³¹

33. Secondly, the Litigation Chamber reads in the first argument of the defendant's position that the latter contests the fact that the personal data of the complainants themselves have been processed. However, it is not always required in all circumstances that the personal data of the complainant be processed in order to lodge a complaint.³²

34. In any case, the complainants expressly state that they visited the websites on February 10, 2023, and that "their personal data was processed by DPG Media via cookies."³³ As the complainants point out in their position, as Belgian and Dutch citizens respectively, they are "also partly dependent on DPG Media" regarding the collection of information, given the limited number of media providers in Belgium.

Even if there were a dispute regarding the precise timing of the complainants' visit – despite the statements of these complainants applied according to the principle of good faith³⁴ – the

28 Decision 112/2024 of September 6, 2024, point 98.

29 Complainants' position, November 15, 2024, point 29.

30 Complainants' position, November 15, 2024, point 46: "The complainants actually visited the websites of DPG Media themselves and on their own initiative, without being prompted in any way by Noyb. In particular, after becoming aware of the settlement decision already made by the DPA regarding the websites, the complainants had issues with DPG Media's cookie banner practices." (emphasis and bolding by the Litigation Chamber) (Translator's note: free translation made by the Translation Service of the Data Protection Authority, in the absence of an official translation)

31 See in the same sense the Decision of the Litigation Chamber No. 113/2024 of September 6, 2024, point 89.

32 Cassation, V v. DPA, C.20.03223.N, ECLI:BE:CASS:2021: ARR.20211007.1N.4, § 6:

"Considering on the basis of these grounds that a violation of Article 5, paragraph 1, c), of the regulation is not established and by annulling the contested decision of the applicant, whereas it is not required that the personal data of the complainant have been effectively processed for the applicant to impose corrective measures or an administrative fine in the context of a complaint, after having established the existence of a practice resulting in a violation of the principle of minimal data processing, the appellate judges did not legally justify their decision." (emphasis by the Litigation Chamber).

33 Complainants' position, November 15, 2024, point 11.

34 See Article 1.9, paragraph 1 of the Civil Code: "Good faith is presumed."

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The fact that the complainants believe that the processing of the disputed websites infringes upon the processing of their personal data is sufficient to file a complaint with the APD. In this regard, the Court of Cassation has already specified the following:

"By considering on the basis of these grounds that a violation of Article 5.1(c) of the GDPR is not established and by annulling the contested decision of the applicant, while it is not required that the personal data of the complainant have been actually processed for the applicant to impose corrective measures or an administrative fine in the context of a complaint, after having established the existence of a practice leading to a violation of the principle of minimal data processing, the appellate judges did not legally justify their decision."³⁵ (emphasis added by the Contentious Chamber).

35. The defendant cannot irreversibly prove (for example, based on statements or press releases from the complainants or Noyb) that the visits on February 10, 2023, were not made by the complainants or that there was a false declaration in the administration of evidence - this is at most a negligence on the part of the representative in the formulation and dating of certain pieces of evidence:

- a. The fact that, after the initial visit of the complainants on February 10, 2023, other individuals from Noyb would have collected evidence in preparation for the mandate and the complaint does not prove that the initial visits were not made by the complainants and/or that the personal data of the complainants were processed or not;
- b. The fact that other individuals took screenshots of other aspects of the cookie banners, or regarding the banner governing the withdrawal of consent, with evidence that other laptops were used to take these screenshots, does not prove that it was not the complainants who visited the websites of their own initiative on February 10, 2023, and decided to file a complaint;
- c. The fact that on the day of the visits by the complainants, namely February 10, 2023, cookies would have been refused – and not on other dates – and that it is thus established that no personal data of the complainants was processed and consequently, no complaint can be filed, is legally deficient on two points, as (i) one cannot require the complainants – to the extent that they indeed refused the cookies, as claimed by the defendant – to engage in the alleged infringing practice in order to file a complaint³⁶ and (ii) it is the complainants who, according to their statements of February 10, 2023, observed the alleged infringing practice and "believed"³⁷ at that moment that a violation of their personal data could be observed, which is why they mandated Noyb in accordance with Article 80.1 of the GDPR. For this latter aspect, the complainants rightly refer to Recital 142 of the GDPR preamble, which specifies that a data subject may mandate a representative as soon as they "believe" that their

rights under the GDPR have been violated.

36. Thirdly, the defendant claims, also in its first plea, that various false pieces of evidence are provided, as for example some documents submitted only mention the URL

"https://myprivacy.dpgmedia.be", and not the websites on which the disputed complaints are based, such as Het Laatste Nieuws or De Morgen.³⁸ This is clearly an irrelevant argument, as it is precisely on the first mentioned URL that every internet user can arrive when visiting the two aforementioned disputed websites to give or not give their consent to the placement of cookies. Furthermore, the defendant does not specify which screenshots would have been manipulated in concreto so that the concrete representations of the disputed cookie banners could indicate such a lack of interest (to take legal action) of the complainant regarding the initial visits and their grievances that existed in this context.

In any case, nothing in this context indicates a problematic mandate or a lack of interest in taking legal action; however, the defendant is of course free to contest the veracity or relevance of certain documents in the context of the substantive processing of the case.

For the preparation of the case, it is absolutely not relevant or appropriate for the Contentious Chamber to already rule on the sufficiently probative nature of certain documents for establishing a violation, such as the HAR files that have been attached by the complainants. The defendant's arguments in this regard are therefore not analyzed further – in the interest of good administration of justice.

37. Fourthly, the defendant emphasizes, in the first sub-plea of its second plea, the subdivision of the disputed complaints – on the defendant's website – of the complainants under the "Cookie Banners" project, and the defendant claims that Noyb would have artificially created complaints in this instance, despite the wording of Article 80.1 of the GDPR (with a distinction from Article 80.2 of the GDPR, which has not been 'activated'

36 Ibid.

37 See the wording of Article 77.1 of the GDPR and Recital 142 of its preamble in light of Article 80.1 of the GDPR.

38 Defendant's position, December 20, 2024, §§ 25-32.

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in Belgian legislation). The fact that certain complaints are subdivided in certain projects does not in itself indicate that Noyb has artificially established and submitted these complaints – and notably not at the initiative of the concerned complainants. The fact that Noyb – after a request to this effect by the complainants – would have ensured coordination with these complainants and that it can take up the complaints in a certain category of activities and projects can hardly be considered a sufficient element in itself to speak of an artificially created complaint (or, to the extent that the defendant refers to it, of an abuse of rights or a fictitious mandate).

38. Fifthly, the defendant emphasizes, in its second sub-argument of the second argument, that the complaints are part of a sub-project and were generated by Noyb based on specific selection criteria defined by Noyb:

- a. The elements put forward by the defendant regarding the subdivision on Noyb's public websites precisely prove that the complaints as a sub-project appear to be expressly distinct from certain other projects (related to cookies), notably those where Noyb centrally and coordinately defines themes and data controllers within a specific action project;
- b. The fact that the complainants considered submitting the complaints by mutual agreement, with the aim of being represented by Noyb and having these complaints integrated into the categories of other complaints related to cookie banners, does not demonstrate any prior instruction indicating an abuse of rights or a lack of interest (to take legal action) in the relationship between the complainants and Noyb;
- c. When the defendant argues that Noyb does not mention that it acts on behalf of specific complainants and mentions in this context that the settlement decisions of the Data Protection Authority (DPA) against certain media companies have been specifically analyzed, it should be noted that it is indeed Noyb, as the representative of the complainants under the wording of Article 80.1 of the GDPR, that submits a complaint to the supervisory authority. The fact that Noyb designates itself

as the entity that submits the complaints is de jure simply correct (to the extent that this would subsequently constitute a relevant indication of the existence of an abuse of rights or a fictitious mandate);

d. The fact that the case numbers correspond, piece by piece, to the list (on the websites) of Noyb that includes the settlement decisions of the DPA involving, in particular, a previous settlement with the defendant, does not demonstrate that it is Noyb that has given a prior instruction to the complainants; it merely demonstrates the simple fact that the complainants have used the information available on Noyb's website(s);

e. The fact that the evidentiary documents have been classified in a file indicating that they are part of "ongoing projects" does not prove – again – any prior instruction, but simply the fact that the complainants have used the tools that were offered to them by Noyb, where they utilized the forum made available to them to submit their grievances in the form of complaints (and under "projects," according to their terms) to Noyb as their representative;

f. The fact that the (one of the) complainants has registered the complaint in an English-language file does not constitute any relevant element and proves, again, simply that the complainants have utilized the tools that were offered to them by Noyb, where they utilized the forum made available to them to submit their grievances in the form of complaints (and under "projects," according to their terms) to Noyb as their representative;

g. The fact that the complainants use the same categorization as that of Noyb, which refers to certain types of violations, does not prove any prior instruction from Noyb; it simply demonstrates that the complainants have utilized the instruments (including templates, standard paragraphs, etc.) provided by Noyb, where they utilized the forum made available to them to submit their grievances in the form of complaints (and under "projects," according to their terms) to Noyb as their representative;

h. The fact that after the initial visits of the complainants to the websites and after the emergence of their grievances in this regard, other collaborators of Noyb also collected evidence while Noyb did not yet have an official mandate at that time, does not prove that there was a prior instruction from Noyb that the complainants' grievances would have been "oriented"; it merely proves that there was already coordination before Noyb was formally mandated, which is not problematic in itself and can simply be considered a good practice to avoid complaints being filed without prior evidence collection and thorough preparation;

i. The fact that one of the complainants speaks in Noyb's press release regarding the disputed complaints and is designated as "legal intern at Noyb" (and not as one of the complainants) does not prove either that Noyb gave prior instructions to this person as a

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complainant - before the occurrence of the grievances - and it is clear from the citation reproduced³⁹ that the complainant in question (by using "we") also perceived the practice as an infringement.

39. Sixthly, the defendant refers in the third sub-argument of its second argument to the fact that the two complainants were working as legal interns "on behalf of Noyb" when the complaints were generated. Again, it should be emphasized that it is indisputably established that the complainants, at the time of the occurrence of their grievances and the visit to the disputed websites, were indeed interns, but that the law does not exclude anywhere that a supervisor or employer represents its interns or collaborators in the filing of complaints within the meaning of Article 80.1 of the GDPR.

The Contentious Chamber has furthermore never claimed that the mere fact that the complainants were interns at the time of the introduction of the complaint, or held any other position as collaborators of Noyb, constitutes in itself a sufficient reason to dismiss the complaints filed within the framework of a representation relationship under Article 80.1 of the GDPR. However, this has played a role in contextualizing the reasons for the decisions to reject the complaints (notably in the VOO and Roularta cases), given that there was then indisputable evidence (notably publicly accessible) demonstrating that the grievances were not attributable to the complainants concerned – and that the processing of their personal data had been artificially constructed (which, furthermore, also entails a risk of harm, as explained by the Contentious Chamber in the Roularta decision⁴⁰).

40. Furthermore, the defendant cites several additional factual elements that it considers relevant in

this context, which the Contentious Chamber does not consider as giving rise to any grounds for rejecting the complaints.

41. It matters little that Noyb claims that they are interns or "volunteers," and that there can therefore be no question of any coercion. The Contentious Chamber emphasizes – just as it did in the Roularta and Mediahuis⁴¹ decisions – that an internship relationship does indeed imply a certain subordination (for example, because an internship, whether successful or not, can have consequences for a person's professional career),

39 The full citation, included in the defendant's position of December 20, 2024 (§ 92), is stated as follows (free translation): "We are shocked by the fact that, despite the clarity of the requirements applicable to cookies, the concerned news websites still do not comply with the basic principles governing the design of cookie banners. Respect for the privacy of their users is all the more important as these sites attract many visitors."

40 Decision of the Contentious Chamber 112/2024, September 6, 2024, § 77.

41 Decision 113/2024 of the Contentious Chamber, available via the following link:

<https://www.autoriteprotectiondonnees.be/publications/decision-quant-au-fond-n0-113-2024.pdf>.

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and that there can indeed be a risk of pressure, as well as potential conflicts of interest.⁴²

42. The fact that in his position, the defendant examines in detail the status of the volunteer is not relevant in this matter, as for the Contentious Chamber, it is not relevant – and it never has been – that the status of "volunteer" would allegedly imply a lesser risk of pressure than the status of paid collaborator. The only thing that could change the perspective here is evidence that there were concrete projects or instructions to file specific complaints that could – indeed – reveal, for example, a conflict of interest.⁴³

43. In the same context, the defendant also refers to a case brought before the Court of Justice by the complainants, to argue that Noyb has also previously represented (former) collaborators before the Court of Justice. This case is not relevant because, in any event, access to the law of the supervisory authorities differs from that of courts and tribunals, and moreover, the case had nothing to do with representation before the supervisory authority in the sense of Article 80.1 of the GDPR.

44. Seventhly, in the fourth sub-argument of his second plea, the defendant broadly claims that there is an abuse of rights because Article 80.2 of the GDPR has not been implemented in Belgian legislation and that Noyb would thus be instrumentalizing the complainants to exercise the right to complain via Article 80.1 of the GDPR. The Contentious Chamber reiterates that the fact that Noyb may have previously resorted to fictitious mandates, or may have committed an abuse of rights, is not in itself sufficient for it to be a question of a fictitious mandate or an abuse of rights in this case. When the defendant claims that Noyb would have filed a complaint "independently of a concerned person," his argument lacks legal basis; there is a clear mandate of representation in this file for the two concerned complainants, and the complainants state that they themselves took the initiative to file the complaints.

45. Eighthly, regarding the distinction with the VOO case, the defendant argues in his third plea that many elements are similar to the present case. The differences, according to the defendant (broadly speaking), lie in the fact that in the VOO case, the Inspection Service intervened and that processing of personal data of complainants was demonstrated, which would not be the case here. However, the Contentious Chamber does not see how, in the VOO case, the processing of personal data was more established than in the present case, and how the intervention of the Inspection Service in that case could have

42 This could also constitute a risk in a relationship between a volunteer collaborator and the provider of the volunteer workplace.

43 Cf. Decision of the Contentious Chamber 112/2024, September 6, 2024, § 79.

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to further prove that the complainants had indeed visited the disputed websites themselves on February 10, 2023 (and in this sense, could provide further contrary evidence - which implies proving a negative fact, given that the complainants allege the opposite). None of the elements invoked by the

defendant indicates that a fictitious mandate (or a lack of interest (to take legal action) or the presence of an abuse of rights) would also apply in this case, precisely because the VOO file differs substantially from the present case in its factual constellation (cf. above, section 3.3).

II.3. The decision on the merits (Article 95, § 1, 1° of the LCA)

46. In light of all these considerations, and in accordance with Article 95, § 1, 1° of the LCA, the Contentious Chamber decides to proceed with the treatment on the merits of file 44, of which notification is hereby made⁴⁵ and in which the parties may submit conclusions.

47. Regarding the procedural point concerning the interest (to take legal action) of the complainants and the mandate of their representative, this is a prima facie decision, with the substantive debates also allowing - and having always allowed - the advancement of arguments and means that will lead to a decision under Article 100 of the LCA, including a decision to dismiss the case.

48. Given the continuation of the treatment of the case on the merits, the Contentious Chamber will invite the parties, pursuant to Article 98, 2° and 3° in conjunction with Article 99 of the LCA, to submit their conclusions and to add to the file all documents they deem useful.

49. In the interest of completeness, the Contentious Chamber emphasizes that a treatment of the case on the merits may lead to the imposition of the measures mentioned in Article 100 of the LCA.⁴⁶

44 Art. 95, § 1, 1° of the law of December 3, 2017 establishing the Data Protection Authority.

45 Art. 98 of the law of December 3, 2017 establishing the Data Protection Authority.

46 "Art. 100. § 1. The contentious chamber has the power to:

1° dismiss the complaint without further action;

2° order a dismissal;

3° pronounce the suspension of the ruling;

4° propose a settlement;

5° issue warnings and reprimands;

6° order compliance with requests from the concerned person to exercise their rights;

7° order that the interested party be informed of the security issue;

8° order the freezing, limitation, or temporary or permanent prohibition of processing;

9° order compliance with processing requirements;

10° order the rectification, restriction, or deletion of data and notification of such to the recipients of the data;

11° order the withdrawal of the accreditation of certification bodies;

12° impose penalties;

13° impose administrative fines;

14° order the suspension of cross-border data flows to another State or an international organization;

15° refer the file to the public prosecutor of the Brussels Court, who informs it of the follow-up given to the file;

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50. Given the previous exchanges with the parties in Dutch and the location of the defendant's headquarters in a unilingual Dutch-speaking region, Dutch is used as the language of procedure.

51. Based on the documents in the file, including the complaint form, the Contentious Chamber finds that the scope of the present case concerns the following alleged violations by the defendant:

1. Alleged violations of Article 10/2 of the Law of July 30, 2018, on the protection of natural persons with regard to the processing of personal data (M.B. 5/9/2018, hereinafter the "LTD"), in connection with Article 125, § 1, 1° of the Law of June 13, 2005, on electronic communications (M.B. 20/6/2005, hereinafter the "LCE"; this provision is mentioned in Article 10/2 of the LTD) and Article 6.1.a. of the General Data Protection Regulation (EU 2016/679, published 4/5/2016, hereinafter "GDPR"): the complainants assert in each of the four complaints regarding the four disputed websites that the consent requirements were not respected, notably due to the absence of a "reject" option at the first level of information in the cookie banner. In this regard, the alleged violations concern the lack of valid consent under the Belgian implementing provisions of the e-Privacy Directive (EU 2002/58) read in conjunction with the aforementioned provisions of the GDPR, concerning the processing of personal data carried out following the placement of cookies;

2. Alleged violations of Articles 5.1.a. of the GDPR and 6.1.a. of the GDPR: the complainants assert in each of the four complaints that the use of different colors for the cookie banner in the context of granting consent would be misleading in this case. In this sense, the alleged violations concern compliance with the principles of lawfulness, fairness, and transparency, as well as the valid granting of consent. Given the manifest connection, the Contentious Chamber also raises ex officio in this context the consent requirements under Articles 10/2 of the LTD and 125, § 1, 1° of the LCE mentioned above – given the link with the placement of cookies and the consent requirements in these legal provisions. The defendant must therefore also include these articles in its defense in this regard;

3. Alleged violations of Article 4(11) in conjunction with Article 7.3 of the GDPR: the complainants assert in each of their four complaints that in the context of the placement of cookies, it is not as easy to withdraw consent as it is to give it. In this sense, all complaints indicate that the data subjects must go through several steps on the disputed websites before they can withdraw any consent, after which the withdrawal of any consent given - for example, but not limited to, in cases where a data subject had previously accepted all cookies simultaneously - could only be done separately. Given the manifest connection, the Contentious Chamber also raises ex officio in this context the consent requirements under Articles 10/2 of the LTD and 125, § 1, 1° of the LCE mentioned above – given the link with the placement of cookies and the consent requirements in these legal provisions. The complaint regarding the website '7sur7' also mentions in this context an alleged violation of Article 5.1 a). of the GDPR, as it would not be correct or transparent that the section regarding the cookie policy on the disputed website does not contain a button or link allowing the adjustment of cookie preferences, and that the mentioned section is also not available on the disputed website. The defendant must therefore also include these articles in its defense in this regard.

III. Publication of the Decision

52. The Contentious Chamber is in the habit – for reasons of transparency – of publishing decisions under Article 95, § 1 of the LCA, when these decisions contain warnings or injunctions (so-called "light decisions").

53. Generally, the Contentious Chamber does not publish its decisions in the sense of Article 95, § 1, 1° of the LCA – when it concerns interim decisions to address the case on the merits – notably because they do not contain significant elements relevant to the public interest and are merely procedural advancement measures.

54. However, in this very specific context, the Market Court has decided that a special obligation of motivation applies, requiring a comparison of the facts of the present case with another decision.

55. Given that, precisely due to this particular obligation of motivation, the present decision contains relevant elements to be brought to the public's attention, the Contentious Chamber decides to publish this decision on its website.

56. In this regard, for a proper understanding of the decision, the identification data of the defendant as well as that of the representative are included. For the identification of the defendant, it is important to specify that its media websites have a wide reach within the Belgian population and among a large Dutch-speaking and French-speaking audience, so that the publication is in itself in the public interest. Furthermore, the present decision makes...